NEPAL'S CONSTITUTION 2072

(Constitution of Nepal)

Complete Important Questions & Answers

For Lok Sewa / PPSC 5th Level General Administration

Key Facts at a Glance

- Official Name: **Constitution of Nepal**
- Promulgated: **20 September 2015 (Asoj 3, 2072)**
- Structure: **35 Parts | 308 Articles | 9 Schedules**
- Fundamental Rights: **31 Rights (Articles 16–46)**
- Nature: Federal Democratic Republican State
- Sovereignty: Vested in the Nepalese People
- First Amendment: Falgun 16, 2072 (2016)
- Second Amendment: 2020

How to use this material: Questions are arranged topic-wise covering the entire Constitution. Correct answers are shown in **bold red**. Short explanations are provided for conceptual clarity. This compilation is based on repeated patterns from PSC/PPSC exams and high-probability questions.

1. PRELIMINARY (Part 1 – Articles 1 to 9)

Q1. What is the official name of the present Constitution of Nepal?

Answer: **Constitution of Nepal (■■■■■■■ ■■■■■■■)**

Explanation: Article 1 states that this Constitution is the fundamental law of Nepal. It is commonly referred to as Constitution of Nepal 2072 to distinguish it from previous constitutions.

Q2. When was the Constitution of Nepal promulgated?

Answer: **20 September 2015 (Asoj 3, 2072 BS)**

Explanation: It was authenticated by the President and published in the Nepal Gazette on this date.

Q3. According to the Constitution, where is the sovereignty and state authority of Nepal vested?

Answer: **In the Nepalese people**

Explanation: Article 2: The sovereignty and state authority of Nepal shall be vested in the Nepalese people. It shall be exercised in accordance with the provisions of this Constitution.

Q4. How is Nepal defined under Article 4 of the Constitution?

Answer: **Independent, indivisible, sovereign, secular, inclusive, democratic, socialism-oriented, federal democratic republican state**

Explanation: This is one of the most frequently asked questions. Remember all the adjectives.

Q5. What does 'secular' mean according to the Constitution?

Answer: **Religious and cultural freedoms including protection of religion and culture handed down from time immemorial**

Explanation: Explanation under Article 4.

Q6. What is the national language of Nepal according to Article 6?

Answer: **All languages spoken as the mother tongue in Nepal are the national languages of Nepal**

Explanation: Nepali language written in Devanagari script is the official language of Nepal (Article 7).

Q7. How many Parts, Articles and Schedules are there in the Constitution of Nepal?

Answer: **35 Parts, 308 Articles and 9 Schedules**

Explanation: This is a must-remember factual question asked repeatedly in all levels of Lok Sewa exams.

2. CITIZENSHIP (Part 2 – Articles 10 to 15)

Q8. Can any Nepali citizen be deprived of the right to obtain citizenship?

Answer: **No. No citizen of Nepal may be deprived of the right to obtain citizenship (Article 10).**

Explanation: Single federal citizenship with provincial identity is provided.

Q9. What type of citizenship system does Nepal follow?

Answer: **Single federal citizenship with State (provincial) identity**

Explanation: Article 10(2).

3. FUNDAMENTAL RIGHTS & DUTIES (Part 3 – Articles 16 to 48)

Most Important Topic for Exams. There are **31 Fundamental Rights** (Articles 16–46). Article 47 deals with implementation and Article 48 with duties of citizens.

Q10. How many Fundamental Rights are guaranteed in the Constitution of Nepal 2072?

Answer: **31 Fundamental Rights (Articles 16 to 46)**

Explanation: This is the single most repeated question in Lok Sewa exams.

Q11. Which Article guarantees the Right to Live with Dignity?

Answer: **Article 16**

Explanation: It also abolishes the death penalty. No law shall be made providing for the death penalty.

Q12. Which Article provides the Right to Freedom?

Answer: **Article 17**

Explanation: It includes six freedoms: opinion & expression, peaceful assembly, political parties, unions/associations, movement & residence, and profession/occupation/trade.

Q13. Which Article deals with the Right to Equality?

Answer: **Article 18**

Explanation: All citizens are equal before law. Special provisions for women, Dalits, indigenous, Madhesi, etc. are allowed. Equal pay for equal work and equal ancestral property rights for offspring are guaranteed.

Q14. Right to Constitutional Remedies is provided under which Article?

Answer: **Article 46**

Explanation: Very important. A person can move the Supreme Court (Art. 133) or High Court (Art. 144) for enforcement of fundamental rights.

Q15. What are the Fundamental Duties of citizens under Article 48?

Answer: **1. Safeguard nationality, sovereignty and integrity of Nepal 2. Abide by the Constitution and law 3. Render compulsory service as required by the State 4. Protect and conserve public property**

Explanation: First time duties of citizens were clearly listed in a Nepali Constitution.

Q16. Which Article guarantees Rights of Women?

Answer: **Article 38**

Explanation: Equal lineage right, safe motherhood, proportional participation, special opportunity in education/health/employment, and property rights.

Q17. Rights of Dalits are guaranteed under which Article?

Answer: **Article 40**

Explanation: Proportional inclusion, free education with scholarship, housing, traditional occupation protection, and representation.

Q18. Which Article provides the Right to Social Justice?

Answer: **Article 42**

Explanation: Economically, socially or educationally backward groups have the right to participate in state bodies on the basis of proportional inclusion.

Q19. Right to Clean Environment is under which Article?

Answer: **Article 30**

Explanation: Every person has the right to live in a clean and healthy environment. Victims of pollution have the right to compensation.

Q20. Which Article deals with Right to Education?

Answer: **Article 31**

Explanation: Every citizen has the right to access basic education. Compulsory and free basic education and free education up to secondary level are guaranteed.

4. DIRECTIVE PRINCIPLES, POLICIES & OBLIGATIONS (Part 4)

Q21. Are Directive Principles of State Policy enforceable in court?

Answer: **No. They are not enforceable in any court (Article 55).**

Explanation: However, the State has the duty to implement them. They guide the State in making laws and policies.

Q22. What is the main objective of the Directive Principles?

Answer: **To establish a public welfare system by creating a just system in all aspects of national life**

Explanation: Article 49–55 cover principles, policies and obligations of the State.

5. STRUCTURE OF STATE & DISTRIBUTION OF POWER (Part 5)

Q23. What is the structure of the State of Nepal under Article 56?

Answer: **Federal democratic republican structure with three main levels: Federation, State (Province) and Local level**

Explanation: There shall be States and Local levels as provided in the Constitution.

Q24. Where do residual powers vest according to the Constitution?

Answer: **In the Federation (Federal Government)**

Explanation: Article 58: Powers not enumerated in the Federal, State or Concurrent lists or in the Local level list shall vest in the Federation.

Q25. How many Schedules deal with distribution of powers?

Answer: **Schedules 5, 6, 7, 8 and 9**

Explanation: Schedule 5: Federal Power List Schedule 6: State Power List Schedule 7: Concurrent (Federal + State) Schedule 8: Local Level Power List Schedule 9: Concurrent powers of all three levels

Q26. What is the relation between Federation, State and Local levels?

Answer: **Based on the principles of cooperation, coexistence and coordination (Article 56/232)**

Explanation: This is a highly repeated concept in both objective and subjective questions.

6. PRESIDENT, VICE-PRESIDENT & FEDERAL EXECUTIVE

Q27. What is the term of office of the President of Nepal?

Answer: **5 years from the date of election**

Explanation: Article 63. A person can be elected President only twice.

Q28. What is the minimum age to become President of Nepal?

Answer: **45 years**

Explanation: Article 64: Must be qualified to be a member of Federal Parliament and at least 45 years of age.

Q29. Who is the Head of State and who is the Head of Government in Nepal?

Answer: **President is the Head of State; Prime Minister is the Head of Government**

Explanation: Executive power of Nepal is vested in the Council of Ministers (Article 75).

Q30. How is the Prime Minister appointed?

Answer: **The President appoints the leader of the parliamentary party that commands majority in the House of Representatives as Prime Minister**

Explanation: Detailed provisions are in Article 76.

7. FEDERAL LEGISLATURE & JUDICIARY

Q31. What is the structure of the Federal Parliament of Nepal?

Answer: **Bicameral: House of Representatives (Lower House) and National Assembly (Upper House)**

Explanation: House of Representatives: 275 members; National Assembly: 59 members.

Q32. How many members are there in the House of Representatives?

Answer: 275 members

Explanation: 165 from first-past-the-post and 110 from proportional representation.

Q33. What is the structure of the Judiciary in Nepal?

Answer: Supreme Court, High Courts and District Courts

Explanation: Article 127. Supreme Court is the highest court.

Q34. Who is the head of the judicial system of Nepal?

Answer: Chief Justice of Nepal

Explanation: Appointed by the President on recommendation of the Constitutional Council.

8. CONSTITUTIONAL BODIES (Parts 21–27)

There are **13 Constitutional Bodies** in the Constitution of Nepal. This is a favourite area for MCQs.

1. Commission for the Investigation of Abuse of Authority (CIAA)
2. Auditor General
3. Public Service Commission
4. Election Commission
5. National Human Rights Commission
6. National Natural Resources and Fiscal Commission
7. National Women Commission
8. National Dalit Commission
9. National Inclusion Commission
10. Indigenous Nationalities Commission
11. Madheshi Commission
12. Tharu Commission
13. Muslim Commission

Q35. How many Constitutional Bodies are there in the Constitution of Nepal?

Answer: **13 Constitutional Bodies**

Explanation: Parts 21 to 27. Very frequently asked.

Q36. Which Article deals with the Public Service Commission?

Answer: **Articles 242 to 244 (Part 23)**

Explanation: PSC is responsible for selecting suitable candidates for civil service positions.

9. IMPORTANT SCHEDULES

Schedule	Subject
Schedule 1	National Flag of Nepal
Schedule 2	National Anthem of Nepal
Schedule 3	Coat of Arms of Nepal
Schedule 4	Provinces and Districts
Schedule 5	List of Federal Power
Schedule 6	List of State (Provincial) Power
Schedule 7	List of Concurrent Powers (Federal + State)
Schedule 8	List of Local Level Power
Schedule 9	List of Concurrent Powers (Federal + State + Local)

10. HIGH-YIELD SUBJECTIVE QUESTIONS (With Model Points)

Q. Describe the major features of the Constitution of Nepal 2072.

Model Answer Points:

1. Federal Democratic Republican system
2. Sovereignty vested in the people
3. Secular, inclusive and socialism-oriented state
4. Competitive multi-party democratic system
5. 31 Fundamental Rights with constitutional remedies
6. Independent, impartial and competent judiciary

7. Separation of powers and checks & balances
8. Three tiers of government with cooperation, coexistence and coordination
9. Proportional and inclusive representation
10. 13 Constitutional Bodies for accountability

Q. Explain the distribution of state power under the Constitution of Nepal.

Model Answer Points:

• Article 56 & 57 provide the framework.
• Exclusive powers: Schedule 5 (Federal), Schedule 6 (Provincial), Schedule 8 (Local)
• Concurrent powers: Schedule 7 (Federal+Provincial) and Schedule 9 (all three levels)
• Residual powers vest in the Federation (Article 58)
• Principle of cooperation, coexistence and coordination guides inter-governmental relations.

Q. What are the provisions regarding Fundamental Rights in the Constitution of Nepal? Discuss any five important rights.

Model Answer Points:

• 31 Fundamental Rights under Part 3 (Art. 16–46)
• Right to Live with Dignity (Art. 16) – abolishes death penalty
• Right to Freedom (Art. 17) – six freedoms
• Right to Equality (Art. 18) – special provisions allowed
• Right to Constitutional Remedies (Art. 46) – most important for enforcement
• Rights of Women (Art. 38), Dalits (Art. 40), Social Justice (Art. 42) etc.
• Article 47: State shall make legal provisions for implementation within 3 years.

Final Tips for Exam:

• Memorize exact Article numbers for high-frequency topics (16, 17, 18, 46, 56, 57, 58).
• Practice writing short answers in both Nepali and English.
• Focus on Schedules 5–9 for power distribution questions.
• Constitutional Bodies and Fundamental Rights carry the highest weightage in objective papers.

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Prepared for PPSC / PSC General Administration 5th Level Aspirants
Good Luck with your preparation!